Attachment to «Have your say» re. draft 2023/0447 (COD) on the welfare of dogs and cats and their traceability – From the Norwegian Food Safety Authority

Additional comments on the connection between the draft and Animal Health Law Regulation (EU) 2016/429

- Re. definition of establishment and keeping in Art. 3: Could the welfare regulation define "establishment" in line with AHL and instead e.g. define "keeping" as follows: 'keeping' means any activity during which an animal is detained or handled in a breeding establishment, animal shelter or pet shop.

- Re. definition of housing in Art. 3: The definition of "establishment" in AHL Art. 4 (27) does not include households where pet animals are kept (ie. dogs and cats held for private non-commercial purposes). Could one drop the reference to "establishments" in the welfare draft's definition of housing?

- Re. animal shelters: An animal shelter will be an establishment and must therefore either be registered or have an approval in accordance with AHL. (Because dogs and cats in shelters are not kept for private non-commercial purposes, and a shelter is not a household.) In accordance with AHL Art. 84 (1) the operators of establishments keeping terrestrial animals shall register their establishments before they commence their activities. Regulation (EU) 2019/2035 Art 9 entails that operators of animal shelters of dogs, cats and ferrets from which those animals are moved to another Member State, must instead have an approval before they commence their activities. There are specific requirements related to biosecurity and facilities that must be fulfilled before an approval may be granted.

- Redrafting in relation to animal shelters: Please note that the title of Chapter II does not cover those responsible for shelters if they are not covered by the definition of operator in the draft's Art. 3. The result will also be that Art. 7 (a) does not require that those responsible for a shelter provide their name etc. Is it intentional that those responsible for shelters also be covered by the Art. 12 (1) cf. Annex I on housing? That would mean that a household keeping a large number of dogs, but not a shelter keeping 11 or more dogs. Is it intentional that those responsible for shelters not be covered by the rules in Art. 12 (4)-(7), Art. 13(1) and (3)? If so, a way to redraft the proposal would be to use the same definition of operator as AHL but draft the listed provisions as covering "*operators **with the exception of** natural or legal persons responsible for shelters*".

- Re. information requirement in Art. 7: Art. 7 in the welfare draft is in effect a form for registration, even though it is called a notification. Article 7 should also be considered in relation to the registration requirement in AHL Art. 84. AHL Art 84 already requires the registration of establishments holding dogs and cats. This requirement does not include households where dogs and cats are held for non-commercial purposes. The information required in the welfare draft's Art. 7 is quite similar to that required in AHL Art 84. It would be preferable that the information required in both AHL Art. 84 and the welfare draft are in line,

with certain additions necessary for welfare. Regulation (EU) 2019/2035 has additional requirements in Art. 18.

- Re. information requirement in Art. 8: The requirement for information on responsible ownership in the welfare draft's Art. 8 should be considered in relation to the knowledge requirement in AHL Art. 11.

- In relation to animal welfare visits in Art. 10: Be aware that AHL art 25(1) requires animal health visits, but the frequency is not specified (proportionate to risks).

- Re. housing requirements, especially re. construction and roaming freely, in Art. 12: See requirements for animal shelters that require approval in Regulation (EU) 2019/2035 Art. 11 cf. Annex I Part 5 points 2 and 3. The requirements in the welfare draft should not be different from those under AHL when it comes to health, although the requirements may be more lenient for shelters that do not send dogs and cats abroad.

- Re. health requirements in Art. 13(2)(b): According to AHL Art. 10(1) (a) an operator is responsible for the health of kept animals, prudent and responsible use of veterinary medicines, minimising the risk of spreading disease and good animal husbandry. These requirements also apply to pet keepers, see Art. 10(3).
  AHL Art. 10 also has biosecurity requirements, but these only apply to operators, ie. not to those keeping dogs or cats for private non-commercial purposes.

- Re. approval requirement in Art. 16: The welfare draft Art. 16 requires approval for breeding establishments. For animal shelters sending cats and dogs abroad where dogs and cats also are breed, there would be an approval requirement under both the welfare draft and AHL's delegated Regulation (EU) 2019/2035. Animal shelters with cross border activities are required to be approved under Regulation (EU) 2019/2035 Art. 9 cf. 11. Regulation (EU) 2019/2035 Art. 11 cf. Annex I Part 5 has many requirements that must be fulfilled before approval may be given. These requirements relate to Part 5 point 2 on isolation and other biosecurity measures and point 3 on facilities and equipment. In comparison, there is no approval requirement for breeding establishments in AHL.

- Re. Art. 17(1) on identification: The second last sentence of Art 17(1) requires that operators of establishments ensure the animals are marked for identification within 3 months. This requirement does not apply to those responsible for shelters, because of the exclusion of these in the definition of "operator" in the welfare draft's Art. 3 (15). AHL only requires the identification of dogs and cats that are moved to another Member State, or that enter the Union. Likewise for the Pets Regulation (EU) No. 576/2013. If the welfare draft is corrected so that those responsible for shelters also are responsible for chipping the dogs and cats within the 3 months, there shouldn't be problems with AHL.

- Re Art. 21 (2) and (3) on entry of dogs and cats into the Union: It would be preferable that the list of third countries that dogs and cats may be imported from, could be aligned with Regulation (EU) 2021/404 or listed in the same regulation. The certificates could also be aligned with Regulation (EU) 2021/403 so that all relevant certificates for dogs and cats could be found in one Regulation.

- Re. Art. 21 (4): AHL Art. 270 repealed the Pet Regulation (EU) No 576/2013. As of 21 April 2026, the Pet Regulation will be replaced by AHL Part VI, see AHL Art. 277. Considering that the welfare draft's Art. 28 states that the regulation shall apply from 2 years from the date of entry into force, the reference to the Pet Regulation (EU) No 576/2013 Art. 10(1)(a) should be corrected as the Pet Regulation will presumably not apply at that time.